

Vikram Agrawal v. Ajay Kumar, Executive Engineer And Another

Allahabad High Court · Single Judge · 21 May 2019 · Contempt Application (Civil) No. 2896 of 2019 · **Contempt disposed of; notices discharged; applicant undertook to execute and furnish the Annexure 4.2 indemnity bond within three days; if he complies, the Court hoped the licensee would ensure connection forthwith; no opinion on merits**

HEADNOTE

Where a writ court has disposed of a petition for a new electricity connection by permitting the applicant to apply afresh with a duly executed indemnity bond as contemplated by Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and directing the licensee to scrutinise that application, civil contempt alleging wilful defiance of that order is disposed of without a finding of contempt where the licensee shows that the bond was never executed and furnished. Appending a blank format of the indemnity bond to the contempt paper book is not execution or furnishing under Annexure 4.2. Counsel having undertaken to execute and furnish the bond within three days, the Court hoped and trusted that if the applicant so complied the opposite parties would ensure connection forthwith, expressly declined any opinion on the merits, disposed of the contempt and discharged notices.

FACTUAL SUMMARY

Vikram Agrawal sought a new permanent electricity connection from Paschimanchal Vidyut Vitran Nigam Ltd. The licensee refused, saying he had not established title or ownership of the premises and that a civil dispute with his father was pending. In Writ Petition No. 21562 of 2017 a Division Bench permitted him to apply afresh with a duly executed indemnity bond in the form of Annexure 4.2 of the U.P. Electricity Supply Code, 2005; if he applied within two weeks, the second and third respondents were to scrutinise the application and pass appropriate orders, and the rejection dated 6 April 2017 was to stand ineffective. Time to comply was later extended by four weeks.

He then filed this civil contempt against Ajay Kumar, Executive Engineer, and another, alleging wilful defiance of those writ orders. Counsel had said at an earlier sitting that the indemnity bond had been furnished. At disposal the opposite parties said a blank format had been appended to the paper book but the bond had never been executed or furnished, so the connection could not be restored.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

contempt of a writ direction to apply with a duly executed Annexure 4.2 indemnity bond

QUESTION

Does civil contempt of a writ directing a fresh connection application with an Annexure 4.2 indemnity bond lie where only a blank format of the bond is on the paper book and the bond was never executed or furnished?

HOLDING

No finding of wilful defiance was recorded. The quoted writ had permitted the applicant to apply afresh with a duly executed indemnity bond as contemplated by Annexure 4.2, and directed the second and third respondents to scrutinise such an application and pass appropriate orders. The opposite parties showed that the applicant had never executed or furnished that bond; the contempt application only appended a format at page 47 of the paper book. Confronted with that, counsel undertook to execute and furnish the bond within three days. If he complied, the Court hoped and trusted the opposite parties would ensure connection forthwith. It expressed no opinion on the merits, disposed of the contempt and discharged notices.

¶ order of 21.5.2019

QUALIFIER

Final sitting 21.5.2019 after listings of 10.5.2019 and 16.5.2019. The 'ensure connection forthwith' sentence is hope and trust, contingent on the applicant's remaining performance of the existing writ direction; it is not a mandamus granting supply.

FLAG Thin civil-contempt record. Source PDF concatenates three unnumbered sittings, all by Mahesh Chandra Tripathi, J.: 10.5.2019 seeking instructions and listing as fresh on 16.5.2019; 16.5.2019 recording counsel's statement that the indemnity bond had been furnished and adjourning to 21.5.2019; 21.5.2019 disposing of the contempt. Coram is the 21.5.2019 disposing judge. The contempt recites writ orders dated 17.5.2017 and 18.5.2018 in Writ Petition No. 21562 of 2017; the first quoted block is headed 17.05.2018, while the 18.5.2018 extension refers to the order dated 17 May 2017 — recorded as the extract states it. The 16.5.2019 statement that the bond had been furnished is inconsistent with the 21.5.2019 finding that it was never executed. Clause 4.4 appears only in the quoted writ; this sitting names Annexure 4.2. Catalog hits on owner-consent, occupancy proof, arrears/mutation and transformer cost are not used. No precedent cited.

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond-annexure-4.2 The quoted writ treated Annexure 4.2 as the path to a fresh connection despite a pending title dispute with the applicant's father. The contempt court held that a blank Annexure 4.2 format in the paper book is not a duly executed and furnished indemnity bond, and disposed of the contempt on an undertaking to execute it within three days. ¶ [order of 21.5.2019](#)

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents If the applicant executed and furnished the Annexure 4.2 bond as undertaken, the Court hoped and trusted the opposite parties would ensure connection forthwith; it did not itself grant the connection or decide the title dispute. ¶ [order of 21.5.2019](#)

clause-4.4-occupant-connection-on-indemnity-bond The underlying writ, as quoted, recorded that Clause 4.4 and Annexure 4.2 envisage an indemnity bond where title is not established; the contempt court enforced that the bond must actually be executed and furnished before the writ direction can be said to have been performed.

¶ [order of 21.5.2019](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTIES HAD WILFULLY DEFIED THE WRIT ORDERS DATED 17.5.2017 AND 18.5.2018

No finding of wilful disobedience was recorded. Notices, if any, were discharged. ¶ [order of 21.5.2019](#)

NOT DECIDED — ENTITLEMENT TO THE ELECTRICITY CONNECTION, AND THE MERITS OF THE FRESH APPLICATION

The Court expressly stated that it had not expressed any opinion on the merits. The 'ensure connection forthwith' sentence was hope and trust if the applicant furnished the bond. ¶ [order of 21.5.2019](#)

NOT DECIDED — TITLE OR OWNERSHIP OF THE PREMISES, AND THE CIVIL DISPUTE BETWEEN THE APPLICANT AND HIS FATHER

Recited from the quoted writ as the licensee's ground of refusal; not examined in contempt. ¶ [order of 21.5.2019](#)